

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----X
ANTWON SMITH,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER CHRIS
MACCARONE, Shield No. 8142, POLICE OFFICERS
JOHN DOE #1-5 and POLICE OFFICERS JANE DOE
#1-3,Defendants.
-----X

Index No.:

Date filed:

Plaintiff designates
Kings County as the
place of trial.**SUMMONS**The basis of venue is:
Plaintiff's residence.**TO THE ABOVE-NAMED DEFENDANTS:**

YOU ARE HEREBY SUMMONED to answer the Complaint in this action, and to serve a copy of your answer, or if the Complaint is not served with this summons, to serve a Notice of Appearance, on the Plaintiff's attorney within twenty (20) days after the service of this summons, exclusive of the day of service or within thirty (30) days after service is complete if this Summons is not personally delivered to you within the State of New York; and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: White Plains, New York
July 1, 2021

Yours, etc.,

LAW OFFICES OF
FRANCIS X. YOUNG, PLLC
By:FRANCIS X. YOUNG, ESQ.
Attorneys for Plaintiff, ANTWON SMITH
Office and Post Office Address
One North Lexington Avenue, 7th Floor
White Plains, New York 10601
(914) 285-1500

Defendants' Addresses:

CITY OF NEW YORK
CORPORATION COUNSEL, DEPARTMENT OF LAW
100 Church Street
New York, New York 10007

POLICE OFFICER CHRIS MACCARONE, Shield No. 8142
c/o City of New York Police Department
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

POLICE OFFICERS JOHN DOE #1-5
c/o City of New York Police Department
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

POLICE OFFICERS JANE DOE #1-3
c/o City of New York Police Department
71st Precinct
421 Empire Boulevard
Brooklyn, New York 11225

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**VERIFIED
COMPLAINT**

Index No.:

Date filed:

Plaintiff, ANTWON SMITH, complaining of the Defendants, by and through his
attorneys, THE LAW OFFICES OF FRANCIS X. YOUNG, PLLC, as and for his Complaint,
hereby alleges as follows:

PRELIMINARY STATEMENT

(1) This is an action for money damages brought pursuant to 42 U.S.C. § 1983, 1985
and 1988 and the Fourth and Fourteenth Amendments to the United States Constitution, and
under the common law of the State of New York for assault, battery, conspiracy, false arrest,
malicious prosecution and violation of Plaintiff's civil rights against CITY OF NEW YORK and
POLICE OFFICER CHRIS MACCARONE, POLICE OFFICERS JOHN DOE #1-5 and
POLICE OFFICERS JANE DOE #1-3, individually and in their official capacity as City of New
York Police Officers.

(2) It is alleged that the Defendants committed assault, battery, illegal seizure, false
imprisonment, false arrest of the Plaintiff, violating his rights under the Fourth and Fourteenth
Amendments of the United States Constitution and under state and federal common law. It is

further alleged that these violations and torts were committed as a result of the policies and customs of the City of New York and the City of New York Police Department.

CONDITIONS PRECEDENT TO SUIT

(3) Within ninety (90) days after the claim herein arose, a Notice of Claim was served upon the Defendant, CITY OF NEW YORK, and at least thirty (30) days have elapsed since the service of the aforesaid Notice of Claim, and adjustment or payment thereof has been neglected or refused.

(4) This action is being commenced timely.

THE PARTIES

(5) Defendants POLICE OFFICER CHRIS MACCARONE, POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 were at all times relevant to this complaint duly appointed and acting officers of the City of New York Police Department, acting under color of law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the State of New York and/or the City of New York, and/or the City of New York Police Department.

(6) Defendant CITY OF NEW YORK is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein and the public employer of Defendants, POLICE OFFICER CHRIS MACCARONE, POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3.

JURISDICTION AND VENUE

(7) This Court has personal jurisdiction over the Defendant CITY OF NEW YORK because it is a municipal corporation organized and existing under the laws of the State of New York, and transacting business therein.

(8) This Court has personal jurisdiction over Defendants, POLICE OFFICER CHRIS MACCARONE, POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 because they are employed by the CITY OF NEW YORK.

(9) This Court has subject matter jurisdiction over this action by virtue of its status as a Court of general jurisdiction.

THE FACTS

(10) On or about November 1, 2017, at approximately 12:30 p.m. at 1088 Carroll Street, County of Kings, State of New York Plaintiff, ANTWON SMITH, was arrested and charged by Defendants with allegedly committing the offenses of: VTL 319(1) Failure to Have Proof of Financial Security; VTL 375(30) Obstruction of Operator's View; VTL 511(1)(A) Aggravated Unlicensed Operation of a Motor Vehicle in the Third Degree; VTL 509(1) Unlicensed Operator; AC 24-163 Operation of Motor Vehicle; Idling of Engine Restricted; and

(11) On or about November 1, 2017 at approximately 12:40 p.m. at 421 Empire Boulevard, County of Kings, State of New York, Plaintiff, ANTWON SMITH, was arrested and charged by Defendants with allegedly committing the offenses of PL 265.03(3) Criminal Possession of a Weapon in the Second Degree (DQO); PL 265.02(1) Criminal Possession of a Weapon in the Third Degree (DQO); PL 265.01-B(1) Criminal Possession of a Firearm (DQO); PL 265.01(1) Criminal Possession of a Weapon in the Fourth Degree; PL 265.37 Unlawful Possession of Certain Ammunition Feeding Device (Not in Home); AC 10-131(I)(6) Possession

of Ammunition Feeding Device, where New York City police officers handcuffed Plaintiff.

Plaintiff was put in a police car and taken to New York City Police Department Headquarters.

(12) All charges were false and eventually withdrawn.

(13) The vehicle Plaintiff was using was impounded without cause and kept causing Plaintiff inconvenience and economic damages.

(14) ANTWON SMITH had neither physically resisted nor assaulted the Defendant Police Officers in any way, and the force used against him was unnecessary, unreasonable, and excessive.

(15) As a direct and proximate result of the acts of Defendants, the Plaintiff ANTWON SMITH suffered physical, mental, economic and emotional damages.

(16) As a direct and proximate result of the actions of the Defendants, Plaintiff's ANTWON SMITH' constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law were violated. Specifically, the following clearly established and well-settled state and federal common law and constitutional rights of the plaintiff were violated:

- (a) Freedom from the unreasonable seizure of his person;
- (b) Freedom from the use of excessive, unreasonable, and unjustified force against his person;
- (d) Right of due process;
- (e) Equal protection under the law;

COUNT I
42 U.S.C. § 1983
4th and 14th Amendments

(17) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” of this Complaint with the same force and effect as if fully set forth herein.

(18) Plaintiff ANTWON SMITH claims damages for the injuries set forth above under 42 U.S.C. 1983 against Defendants, for violation of his constitutional rights under color of law including the Fourth and Fourteenth Amendments to the United States Constitution and state and federal common law.

COUNT II
42 U.S.C. § 1985

(19) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” and “18” all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(20) Plaintiff ANTWON SMITH claims damages for the injuries set forth above under 42 U.S.C. § 1985 against Defendants for conspiring to violate his constitutional rights under color of law.

COUNT III
42 U.S.C. § 1986

(20) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” and “18”, “20” all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(22) Plaintiff ANTWON SMITH claims damages for the injuries set forth above under 42 U.S.C. § 1986 against Defendants for Defendants' failure to intervene and prevent the aforesaid violation of Plaintiff's constitutional rights and conspiracy to commit same.

COUNT IV
42 U.S.C. § 1983 – Municipal Violations

(23) The Plaintiff repeats, reiterates and realleges each and every allegation contained in "1" through "16" and "18", "20", "22" all inclusive of this Complaint with the same force and effect as though fully set forth herein.

(24) Prior to November 1, 2017 and since, the CITY OF NEW YORK has permitted and tolerated a pattern and practice of unjustified, unreasonable and illegal use of force against civilians by police officers of its police department and illegal arrests by police officers of its police department. Although such illegal use of force was improper, the officers involved were not prosecuted, disciplined or subjected to restraint, and such incidents were in fact covered up with official claims that the use of force was justified and proper. As a result, police officers of the CITY OF NEW YORK were caused and encouraged to believe that civilian persons could be abused under the circumstances not requiring the use of excessive force, and that such conduct would in fact be permitted by the CITY OF NEW YORK.

(25) In addition to permitting a pattern and practice of abuse of civilian persons, the CITY OF NEW YORK has failed to maintain a proper system for investigation of all incidents of unjustified beatings and excessive use of force by police officers.

(26) The CITY OF NEW YORK has maintained a system of review of unjustified and excessive use of force, and illegal arrests by police officers that has failed to identify the

improper use of force by police officers and failed to subject officers who assault citizens to discipline, closer supervision or restraint and who illegally arrested citizens, to the extent that it has become the custom of the CITY OF NEW YORK to tolerate the improper, illegal arrests and other wrongful actions by police officers.

(27) Upon information and belief, specific flaws in the CITY OF NEW YORK **use of force** review process include, but are not limited to, the following:

- a. Preparing reports regarding investigations of excessive force claims as routine point-by-point justifications of the police officer's actions, regardless of whether such actions are justified;
- b. Police officers investigations of excessive force claims systematically fail to credit testimony by non-police officer witnesses, and uncritically rely on reports by police officers involved in the incident;
- c. Police officers investigating excessive force claims fail to include in their reports relevant factual information which would tend to contradict the statements of the police officers involved;
- d. Supervisory police officers at times issue public statements exonerating police officers for excessive use of force and improper use of unnecessary and excessive force before the investigation of the incident by the police department has been completed;
- e. Reports in use of force cases are not reviewed for accuracy by supervisory officers. Conclusions are frequently permitted to be drawn on the basis of clearly incorrect or contradictory information.

(28) The foregoing acts, omissions, systemic flaws, policies and customs of the Defendant CITY OF NEW YORK caused police officers of its police department to believe that

excessive force and other improper actions would not be aggressively, honestly and properly investigated, with the foreseeable result that officers would most likely **use excessive force** in situations where such force is neither necessary nor reasonable.

(29) As a direct and proximate result of the aforesaid acts, omissions, systemic flaws, policies, practices and customs of the Defendant CITY OF NEW YORK, and Defendants, POLICE OFFICER CHRIS MACCARONE and POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 unjustifiably assault and detained Plaintiff ANTWON SMITH all in violation of his civil and constitutional rights and as a result of said acts Plaintiff has suffered from physical injury, psychological harm, mental distress, humiliation, embarrassment, fear and being prevented from attending his usual duties.

(30) By permitting and assisting such a pattern of police misconduct, the CITY OF NEW YORK has acted under color of custom and policy to condone, encourage and promote the deprivation of Plaintiff ANTWON SMITH's rights as guaranteed under 42 U.S.C. §§ 1983 and 1985 as well as under the Fourth, Fifth and Fourteenth Amendments of the U.S. Constitution; to wit, the Defendants POLICE OFFICER CHRIS MACCARONE and POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 were encouraged by the CITY OF NEW YORK to believe that their actions against the Plaintiff would be accepted without impunity, just as these actions have been so accepted to date.

(31) As a consequence of Defendants' systemic practice, pattern and custom of intentionally promoting and supporting Officers' violations of 42 U.S.C. §§ 1983 and 1985, Plaintiff ANTWON SMITH was deprived of his freedom and physically harmed, to the extent of which he suffered from various injuries.

(32) The Defendants POLICE OFFICER CHRIS MACCARONE and POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 and CITY OF NEW YORK had a duty under 42 U.S.C. §§1983 and 1985, as well as under the Fourth and Fourteenth Amendment, New York State Law, and their own rules and regulations to prevent and cease the assault on Plaintiff, as well as a duty to investigate, supervise and discipline Defendants POLICE OFFICER CHRIS MACCARONE and POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 and prevent other wrongful acts that were committed against Plaintiff ANTWON SMITH. Defendant OFFICERS breached said duty, by their actions and omissions as described in the preceding paragraphs.

(33) That by reason of the foregoing, Plaintiff has been damaged in amounts exceeding the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this claim.

COUNT V
Assault and Battery

(34) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” and “18”, “20”, “22”, “24” through “33” all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(35) Defendants POLICE OFFICER CHRIS MACCARONE and POLICE OFFICERS JOHN DOE #1-5 and POLICE OFFICERS JANE DOE #1-3 caused Plaintiff ANTWON SMITH to be assaulted and battered.

(36) As a result of this assault and battery, Plaintiff was forced to endure physical and emotional pain and suffering.

(37) Plaintiff claims damages for the physical and emotional pain and suffering incurred as the result of said assault and battery.

(38) As a result of the above, Plaintiff, ANTWON SMITH, suffered personal injuries, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal and New York State statutes.

COUNT VI
False Arrest and Imprisonment

(39) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” and “18”, “20”, “22”, “24” through “33”, “35” through “38” all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(40) Defendants’ concerted actions, under color of law, caused plaintiff to be falsely arrested and imprisoned in violation of his civil rights under the Fourth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the laws of the State of New York.

(41) As a result of the above, Plaintiff, ANTWON SMITH, suffered personal injuries, incurred legal fees, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal and New York State statutes.

(42) As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. §1983.

COUNT VII
Malicious Prosecution

(43) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs “1” through “16” and “18, “19”, “22” “24” through “33” and “35” through “38” and “40” through “42” all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(44) Defendants’ concerted actions, under color of law, caused Plaintiff to be maliciously prosecuted in violation of his civil rights under the Fourth, Fifth and Fourteenth Amendments to the United States Constitution, 42 U.S.C. § 1983 and the Laws of the State of New York.

(45) As a result of the above, Plaintiff, ANTWON SMITH, suffered lost wages, damages to his reputation, incurred legal fees, suffered mental and emotional trauma, lost his enjoyment of life and was deprived of his civil rights and personal liberty as protected by the United States Constitution and applicable Federal Statutes.

(46) As a direct and proximate result of the foregoing actions, said Defendants deprived Plaintiff of rights, privileges and immunities secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution in violation of 42 U.S.C. § 1983.

(47) As a result of the above, Plaintiff, ANTWON SMITH, has been damaged in the amount of FIVE MILLION (\$5,000,000.00) DOLLARS together with such punitive damages, costs and fees as may be deemed just and proper by the Court.

ATTORNEYS FEES

(48) The Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs "1" through "16", "18", "20", "22", "24" through "33", "35" through "38", "40" through "42" and "44" through "47" all inclusive of this Complaint with the same force and effect as if fully set forth herein.

(49) Plaintiff is entitled to an award of attorney's fees pursuant to 42 U.S.C. §1988.

WHEREFORE, Plaintiff requests that this Court grant judgment to him containing the following relief:

- (1) Award compensatory damages to Plaintiff against the Defendants, jointly and severally;
- (2) Award costs of the action to the Plaintiff;
- (3) An award to Plaintiff of his actual damages;
- (4) An award to Plaintiff of reasonable attorney fees;
- (5) An award to Plaintiff of punitive damages; and
- (6) Such other and further relief as this Court may deem just, proper and equitable.

Dated: White Plains, New York
July 1, 2021

Respectfully yours,

LAW OFFICES OF
FRANCIS X. YOUNG, PLLC
BY:



FRANCIS X. YOUNG
Attorneys for Plaintiff ANTWON SMITH
Office and Post Office Address
One North Lexington Avenue, 7th Floor
White Plains, New York 10601
(914) 285-1500

STATE OF NEW YORK)
)
COUNTY OF WESTCHESTER)

FRANCIS X. YOUNG, ESQ., an attorney admitted to practice law in the State of New York affirms the following is true:

I am the attorney for the plaintiff in this action, and that I have an office at One North Lexington Avenue, 7th Floor, White Plains, New York. I have read and know the contents of the foregoing Complaint, and that the same is true to my knowledge except as to the matters herein stated to be alleged upon information and belief, and as to those matters, I believe them to be true.

My belief, as to these matters therein not stated upon information is based upon the following: material, information and documents contained in said files and conversations with the plaintiff.

The reason I make this verification is because the plaintiff resides outside the County in which I maintain an office.

I affirm that the foregoing statements are true under the penalties of perjury.



FRANCIS X. YOUNG

Affirmed this 14th
day of July, 2021.